

		[personal information does not constitute property; even if a company made money off of the sharing or use of a plaintiff's information, that company's gain of money does not equal a plaintiff's loss of money or property].) Request for judicial notice. Defendant's request for judicial notice is DENIED as to exhibits C-E, and GRANTED as to the remainder. (See Bolanos v. Superior Court (2008) 169 Cal.App.4th 744, 761 [trial court rulings have no precedential value]; Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 45, fn. 9 [court may take judicial notice of published legislative history].) Defendant shall give notice.
8	Hoverson vs. Angels Baseball LP 2023-01367831	1. Motion for Summary Judgment and/or Adjudication 2. Motion to Seal Defendant Angels Baseball LP's motion for summary judgment is DENIED. (Code Civ. Proc., § 437c [authorizing motion].) Both parties' evidentiary objections are OVERRULED. Some of plaintiffs' opposition documents were not timely filed or served. The Court exercises its discretion to consider these late documents, particularly as moving defendant's Reply papers address their merits, and do not show that moving defendant was prejudiced by the late filing / service. (Rancho Mirage Country Club Homeowners Assoc. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262 [court's discretion whether to accept or reject late filings]; Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 765 [same]; Carlton v. Quint (2000) 77 Cal.App.4th 690, 698 [response on merits

		can waive service defect even if timeliness objection raised, absent request for continuance and/or showing of prejudice].) There are triable issues of material fact as to causation, given conflicting expert testimony on this element. (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917 [negligence elements]; Espinosa v. Little Co. of Mary Hospital (1995) 31 Cal.App.4th 1304, 1315-1316, citing Jones v. Ortho Pharmaceutical Corp. (1985) 163 Cal.App.3d 396, 402-403 ["The law is well settled that in a personal injury action causation must be proven within a reasonable medical probability based upon competent expert testimony"]; Moving Party Separate Statement, Fact No. 24, and evidence cited in support thereof; Responding Party Separate Statement, response to Fact No. 24, and evidence cited in support thereof; see also Responding Party Separate Statement of Additional Facts, Fact Nos. 55-66, and evidence cited in support thereof.) Moving party's notice of motion only seeks summary judgment, and does not seek summary adjudication in the alternative; in such cases, the court cannot grant summary adjudication. (Jiminez v. Protective Life Ins. Co. (1992) 8 Cal.App.4th 528, 534-535, citing Gonzales v. Superior Court (1987) 189 Cal.App.3d 1542, 1545-1546.) As such, triable issues as to causation are alone sufficient to deny the motion. (Huynh v. Ingersoll-Rand (1993) 16 Cal.App.4th 825, 830 [single triable issue requires denial].) In any event, even assuming without deciding that moving party's duty is limited only to timely summoning medical aid (moving papers at 4:15-5:9), which is disputed by the opposition, there are also triable issues as to whether moving party timely and properly satisfied this duty, so as to create triable issues as to the element of breach as well. (Moving Party Separate Statement, Fact Nos. 2-4, and evidence cited in support thereof [alleged response within one minute]; Responding Party Separate Statement, response to Fact No. 2, and evidence cited in
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	support thereof [disputing timeline]; see also Responding Party Separate Statement of Additional Facts, Fact Nos. 33, 34, 36, 37, 42, 44-46, and evidence cited in support thereof [responding ushers not trained on hand signal used to “activate the facility’s ERS [Emergency Response System], and initial call for aid apparently relaying the nature of the emergency as an allergic reaction, causing Joffe personnel to respond without an available AED].) Motion to Seal. Defendant Angels Baseball LP’s motion to seal documents is DENIED. (Cal. Rules of Court, Rules 2.550, 2.551; NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1217-1218 [findings required to seal documents embody constitutional requirements protecting the First Amendment right of public access].) While public safety procedures and protocols appear to be proper subjects of sealing, the proposed sealing is not “narrowly tailored.” (Cal. Rules of Court, Rule 2.550, subd. (d)(4).) Further, a stipulated protective order is insufficient grounds to seal. (Cal. Rules of Court, Rule 2.551, subd. (a) [“The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties”].) Defendant shall give notice of all the above. Motion for Summary Judgment First, there are clearly triable issues of fact regarding causation, resulting from the parties’ “dueling” expert declarations. As MP has not sought summary adjudication in the alternative, the triable issues re: causation require denial of the motion. Further, even if
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		Moving Party (MP) had properly sought summary adjudication in the alternative, and even if MP is correct that its duty is limited, there are triable issues as to breach, even under the limited duty described in the moving papers. General authority. CCP 437c states in relevant part: (a)(1) A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (c) The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact. ... (f)(1) A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a
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		claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (2) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (o) A cause of action has no merit if either of the following exists: (1) One or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded. (2) A defendant establishes an affirmative defense to that cause of action. (p) For purposes of motions for summary judgment and summary adjudication: (1) A plaintiff or cross-complainant has met that party's burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. On summary judgment / adjudication, the moving party's papers are strictly construed, while the opposing party's papers are liberally
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	construed. (Comm. to Save Beverly Highland Homes Assoc. v. Beverly Highland (2001) 92 Cal.App.4th 1247, 1260.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment / adjudication, and all evidentiary conflicts are to be resolved against the moving party. (McCabe v. American Honda Motor Corp. (2002) 100 Cal.App.4th 1111, 1119.) Here, the Complaint alleges a single C/A for wrongful death due to negligence. "The elements of the cause of action for wrongful death are the tort (negligence or other wrongful act), the resulting death, and the damages, consisting of the pecuniary loss suffered by the heirs." (5 Witkin, Cal. Proc. 5th (2008), Chapter V, "Pleading," § 938, p. 352.) The elements of negligence are: (1) defendant's legal duty to conform to a standard of conduct to protect the plaintiff; (2) defendant failed to meet this standard of conduct; (3) causation; (4) damages. (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.) Late Opp docs. Responding Parties' (RPs) Opp was due 8-21-26. (CCP 437c(b)(2) [Opp due 20 days prior to MSJ hearing].) RPs timely filed and served their Opp P&As (ROA 250), their own separate statement of additional facts (ROA 246), their evidentiary objections to MP's evidence (ROA 254), and their own expert declarations (ROA 248, 252, 256). However, RPs did not timely file or serve their response to MP's Separate Statement (ROA 258), or importantly, the declaration of RP attorney Suba (ROA 262), which authenticates all of RP's evidence. RPs also did not file or serve their documentary evidence timely [as of the time of this workup, these documents were still pending
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		imaging in the e-filing queue]. These latter documents were served 8-23-26; ROA 258 and 262 were not filed until 8-24-26. "[A] trial court has broad discretion to accept or reject late-filed papers." (Rancho Mirage Country Club Homeowners Assoc. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262; see also Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 765 [same].) If the court, in its discretion, refuses to consider a late-filed paper, the minutes or order must so indicate. (CRC 3.1300(d).) The Court exercises its discretion to consider the late Opp documents. MP only addresses untimeliness in its Reply evidentiary objections [which is a procedural objection anyway, not an evidentiary one]. Further, MP's Reply documents also address the substance of the late Opp documents, including evidence authenticated by the late Suba Decl., showing that MP was not prejudiced by the late service. (See Carlton v. Quint (2000) 77 Cal.App.4th 690, 698 [response on merits can waive service defect even if timeliness objection raised, absent request for continuance and/or showing of prejudice]; see also Parkview Villas Assoc., Inc. v. State Farm Fire & Casualty Co. (2005) 133 Cal.App.4th 1197, 1211 [trial court abused discretion in refusing to continue MSJ hearing for plaintiffs to correct deficient Opp papers; "the proper response in most instances, if the trial court is not prepared to address the merits of the motion in light of the deficient separate statement, is to give the opposing party an opportunity to file a proper separate statement rather than entering judgment against that party based on its procedural error"].) Moreover, while MP's Reply Separate Statement is procedurally improper as discussed below, it also shows that MP was not prejudiced by the fact that RPs' responsive separate statement was untimely, as it responds to RPs' [late] evidence. MP Reply Separate Statement.
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		With the Reply, MP submitted a Reply Separate Statement, responding to RP's opposing Separate Statement of additional facts (ROA 246), which is improper. (CCP 437c(b)(4) ["The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers"]; <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 252 ["no provision" in former version of CCP 437c for a "reply separate statement"].) In any event, since there are triable issues as to both elements challenged by the moving papers, it does not make any difference whether or not the Reply Separate Statement is considered. RP evidentiary objections. [ROA 254.] 1. Overruled. RPs object to Dr. Thomas' incorporation of his report (MP Ex. P), but their cited authority (<i>Keniston v. American Nat. Ins. Co.</i> (1973) 31 Cal.App.3d 803) does not stand for the proposition that a declaration cannot incorporate a separate report. Other objections lack merit. 2. Overruled. [Same as Objection No. 1.] 3. Overruled. [Same as Objection No. 1.] 4. Overruled. [Same as Objection No. 1.] 5. Overruled. Sanders' declaration includes sufficient facts to substantiate his statement that the surveillance video footage accurately depicts the "locations" shown therein, even if not the "events" or "individuals" depicted. (See <i>Ambriz v. Kelegian</i> (2007) 146 Cal.App.4th 1519, 1528 [error to sustain evidentiary objection where "at least some portion of the proffered deposition testimony" was not objectionable].) 6. Overruled. The Sanders Decl. adequately authenticates the video exhibits. Whether or not the cited portions thereof actually support the UMFs for which they are cited in the moving Separate Statement, does not mean that the Sanders Decl. itself is inadmissible. 7. Overruled.
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		MP evidentiary objections. With the Reply, MP submitted extensive evidentiary objections to virtually all of RPs' evidence. The Court overrules all of MP's objections to RP's evidence. Whether certain evidence was timely filed/served (objection nos. 1, 19) is a procedural objection, not an evidentiary one. Whether "[n]egligent undertaking creates potential liability only for Joffe, the provider of emergency medical services, not ABLP" is a legal argument, not an evidentiary objection. (Objection nos. 20-30.) Numerous evidentiary objections also cite large portions of the material objected to, and/or object to entire declarations / exhibits, but the asserted objections do not apply to the entirety of the material to which MP objects. (Ambriz v. Kelegian, supra at 1528.) Moreover, whether RPs' experts relied upon sufficient evidence in reaching their causation opinions, goes to the weight of RPs' expert declarations, not their admissibility. MP has only sought summary judgment, and does not seek summary adjudication in the alternative. First, as noted above, and as the Opp correctly points out, MP's notice of motion seeks summary judgment only, and does not seek summary adjudication in the alternative. Where MP's Notice of Motion is for summary judgment only, the court cannot grant summary adjudication. (Jiminez v. Protective Life Ins. Co. (1992) 8 Cal.App.4th 528, 534-535, citing Gonzales v. Superior Court (1987) 189 Cal.App.3d 1542, 1545-1546.) As such, the existence of any triable issue defeats the motion. (Huynh v. Ingersoll-Rand (1993) 16 Cal.App.4th 825, 830 [single triable issue requires denial].) The motion is denied due to triable issues. MP challenges the elements of breach and causation. Addressing the second element first, it is patently evident that the parties have submitted conflicting evidence as to
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		causation. (See MP Separate Statement, UMF 24; see also RP Separate Statement [ROA 258], response to UMF 24, and RP Separate Statement of Additional Material Facts [ROA 246], AMF Nos. 55-66.) "The law is well settled that in a personal injury action causation must be proven within a reasonable medical probability based upon competent expert testimony." (Espinosa v. Little Co. of Mary Hospital (1995) 31 Cal.App.4th 1304, 1315-1316, citing Jones v. Ortho Pharmaceutical Corp. (1985) 163 Cal.App.3d 396, 402-403.) Accordingly, the "dueling" expert testimony here sufficiently creates triable issues of material fact as to causation. As noted above, since MP has only moved for summary judgment, and has not moved for summary adjudication in the alternative, these triable issues as to causation are alone sufficient to deny the motion. (Huynh v. Ingersoll-Rand, supra at 830.) As to the element of breach, MP contends that its duty is limited to timely summoning medical aid, which MP contends occurred when its ushers responded to calls for help in under one minute. (Moving papers at 4:15-5:9; UMF 2-4.) MP largely relies on Verdugo v. Target Corp. (2014) 59 Cal.4th 312, which held in relevant part: All the parties in this case agree that, under California law, Target has a common law duty to provide at least some assistance to a patron who suffers a sudden cardiac arrest while shopping at a Target store. The parties sharply disagree, however, as to the scope of that duty. Target maintains that its employees fully satisfied its common law duty of reasonable care by immediately summoning emergency medical personnel upon learning of the patron's collapse, and that at most it might be required to provide simple first aid measures but that it had no duty to acquire an AED in advance of the incident for potential use in the event of such a medical emergency. By contrast, plaintiffs assert that because of the important
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	potentially life-saving role that an AED may play in the event of sudden cardiac arrest, the size of the Target store in question, the number of customers who patronize the store, and the relatively low cost of an AED device, Target's common law duty of reasonable care to its patrons included an obligation to obtain an AED, and that a jury could properly find that Target acted unreasonably and negligently in failing to do so and that such negligence was a substantial cause of the sudden-cardiac-arrest victim's death. We have no occasion in this case to determine whether a business entity's common law duty to provide assistance to an injured or ill patron never requires a business to do anything more than to promptly summon emergency medical assistance, as Target suggests, or whether a business's common law duty of reasonable care, in some circumstances, may require it to take some additional measures beyond summoning emergency medical assistance. Plaintiffs' claim in this case rests solely on Target's failure to acquire and make available in its department store an AED for use in a medical emergency. Accordingly, we limit our consideration to this issue only. [Citation.] ... we conclude that the common law duty of reasonable care that Target owes to its business patrons does not include such an obligation. (Id. at 336–337, emphasis added; see also Powers v. City of Richmond (1995) 10 Cal.4th 85, 109 [“the positive authority of an appellate opinion is coextensive only with the facts presented by the case”].) MP also relies on Breaux v. Gino's, Inc. (1984) 153 Cal.App.3d 379, 382 [“It is well established that restaurants have a legal duty to come to the assistance of their customers who become ill or need medical attention and that they are liable if they fail to act ... a restaurant meets its legal duty to a patron in distress when it summons medical assistance within a reasonable time”], and Rotolo v. San Jose Sports & Entertainment, LLC (2007) 151 Cal.App.4th 307, 315 [“In regard to the
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	extent of the duty of a landlord or business proprietor to come to the aid of a sick or injured invitee, courts have found that sound policy limits the extent of this duty to promptly summoning emergency services”].) RP’s Opp spends much paper disputing that MP’s duty is so limited. However, even assuming without deciding that MP is correct as to the scope of its duty, there are also triable issues as to whether MP timely, and properly, satisfied such duty. First, MP relies on UMF 2-4, which state: 2. ABLP’s personnel responded to calls for help from Cuadras and Ledbetter, and ABLP personnel arrived within twenty feet of Decedent in response to these calls within thirty seconds of the calls starting. 3. ABLP’s personnel responded to calls for help from Cuadras and Ledbetter, and ABLP personnel arrived within twenty feet of Decedent in response to these calls within thirty seconds of the calls starting. 4. ABLP’s usher Ken Flynn placed a call via radio into Angel Stadium Command Center at approximately 6:00 p.m., once he arrived at Decedent’s position and observed Decedent’s condition, which was received by Jesse Ceja (“Ceja”), the dispatcher for Joffe Emergency Services (“Joffe”), ABLP’s EMT contract services provider. However, RPs’ Opp disputes this timeline, noting that MP’s evidence does not establish any onset time, but only when the video footage begins; that RP’s opposing evidence indicates a possible earlier onset, and that “the precise time of onset is a disputed question of fact.” (RP Separate Statement, response to UMF 2.) Thus, the evidence shows triable issues of material fact as to whether MP in fact timely or promptly summoned aid. RP’s evidence also shows that MP’s training materials prescribe a raised clenched fist as the hand signal “used when you need immediate help for a potential emergency
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	situation,” which signal “should activate the facility’s ERS [Emergency Response System].” (RP AMF 33, 34.) However, the responding ushers (Flynn and Rafiello) testified that they had never been trained on this signal and did not know what it meant. (RP AMF 36, 37.) This also is sufficient to raise triable issues of material fact as to whether MP in fact properly satisfied any limited duty to call for medical aid. This is particularly true in light of RPs’ other evidence that MP’s initial call for aid apparently relayed the nature of the emergency as an allergic reaction, causing Joffe personnel to respond without an available AED. (RP AMF 42, 44-46.) RP’s discovery continuance request. Since the motion is denied on the merits, the Court need not address RP’s request for a discovery continuance. However, it should be noted that RP attorney’s declaration is deficient in this respect. “If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.” (CCP 437c(h).) Here, RP attorney Suba’s declaration shows only that RP has been unable to serve a deposition subpoena to witness John Rivers. (Suba Decl., Para. 21.) The Opp contends that Rivers is a supervisor for Joffe who first responded to decedent, and that his deposition is necessary to establish “the content of the initial dispatch, the reason no defibrillator accompanied the first response, and the provenance of the statements attributed to the first responder in Joffe’s post
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	incident documents.” (Opp at 20:1-4.) None of this information is in RP attorney’s declaration; thus, the “facts necessary to justify opposition” are thus not in any “affidavit” as required by CCP 437c(h). (Gilman v. Dalby (2021) 61 Cal.App.5th 923, 940 [“statements in motions are not evidence”]; Combs v. Skyriver Communications, Inc. (2008) 159 Cal.App.4th 1242, 1270 [discovery continuance denied because “counsel’s supporting declaration did not explain why the information in the requested documents was essential to opposing Tayebi’s motion”].) Motion to Seal The Court denies, without prejudice to a later motion with narrower redactions [or a continuance for MP to propose narrower redactions]. Unless confidentiality is required by law, court records are presumed to be open to the public. (CRC 2.550(c).) A request to seal must be directed at specific material in the record, specifically identify that material, demonstrate an overriding interest that overcomes the right of public access to the material and a substantial probability the interest will be prejudiced absent sealing, and be supported by declarations setting forth specific facts in support of the request. (CRC 2.550(d)-(e), 2.551(a)-(b); H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 894.) The court may order a record sealed only upon making express findings that: “(1) There exists an overriding interest that overcomes the right of public access to the record; [¶] (2) The overriding interest supports sealing the record; [¶] (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; [¶] (4) The proposed sealing is narrowly tailored; and [¶] (5) No less restrictive means exist to achieve the overriding interest.” (CRC 2.550(d); McNair v. National Collegiate Athletic Association
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		(2015) 234 Cal.App.4th 25, 29.) These findings embody constitutional requirements for a request to seal court records, protecting the First Amendment right of public access to civil trials. (See NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1217-1218.) If a motion to seal is granted, the "order sealing the record must: [¶] (A) Specifically state the facts that support the findings; and [¶] (B) Direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. All other portions of each document or page must be included in the public file." (CRC 2.550(e)(1).) "In its order, the court must identify the facts supporting its issuance ... [t]he findings themselves, however, may be set forth in fairly cursory terms ... [i]f the trial court fails to make the required findings, the order is deficient and cannot support sealing." (Overstock.com, Inc. v. Goldman Sachs Group, Inc. (2014) 231 Cal.App.4th 471, 487.) Here, MP seeks an order sealing large portions of the deposition transcripts of various witnesses (MP Exs. B, D, E, F, and H). The moving papers do not describe the specific documents and/or portions of documents to be sealed. Rather, MP merely states that it has filed an unredacted version (ROA 239) and a redacted version (ROA 226), essentially leaving it to the court to compare the two. MP first contends that sealing is warranted because the redacted material "contain[s] information regarding Angel Stadium's emergency response procedures, security infrastructure information, and confidential designations under the Protective Order," and "may be sealed because disclosure would implicate public policy interests regarding public safety, may violate Plaintiffs' right to privacy by disclosing Decedent's medical information, and reveal materials protected
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		under the Protective Order.” (Moving papers at 2:11-15.) MP makes a good point that sealing information regarding its security measures, protocols, and surveillance capabilities should be kept confidential in order to preserve public safety, particularly given the facility’s high profile and public access. (See moving papers at 3:2-17.) This would satisfy CRC 2.550(d)(1)-(3) [an overriding interest overcoming the right to public access, which supports sealing the record, and a substantial probability that the overriding interest will be prejudiced if the record is not sealed]. However, MP’s proposed sealing is not narrowly tailored. (CRC 2.550(d).) For example, MP seeks to seal the entirety of p. 13 of witness Ledbetter’s deposition transcript (MP Ex. B), which addresses when decedent and his party arrived at the stadium, and where they were seated, neither of which appears related to safety issue or protocols. MP also seeks to seal the entirety of p. 35 of that same deposition transcript, which discusses the deponent’s testimony that a video of the incident is incomplete. MP has lodged three different videos as exhibits (MP Exs. C, I, and M), but it cannot be determined from the depo testimony if any of these videos is the subject of the depo testimony at p. 13, or if so, which one. [Rather, it may be that MP is seeking to redact this testimony because it suggests video manipulation, which is potentially embarrassing, although there is no evidence that this in fact occurred.] MP also seeks to seal p. 10 of the depo transcript of Angels usher Flynn (MP Ex. C), which includes some simple background information of the incident and Flynn’s employment, and which does not appear to be related to safety concerns either. Similarly, MP seeks to seal the entirety of p. 19 of the depo transcript of Angels usher Raffaniello (MP Ex. E), and p. 5 of EMT Ceja’s deposition (MP Ex. F), which similarly include simple background information, and which does not appear to be safety-related.
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		Thus, as can be seen, MP has not shown that the proposed sealing is narrowly tailored, as to the safety issues. MP's arguments as to decedent's privacy rights (moving papers at 3:18-4:1) also have facial appeal, but this argument rings hollow, in light of the limited information actually redacted, as well as the face of other exhibits containing private medical information that MP has not requested be redacted or sealed at all. For example, the coroner's report (MP Ex. N) contains detailed descriptions of decedent's body and other medical information / observations that could be considered private, but Ex. N is almost entirely unredacted. MP also contends that sealing is warranted because "the Parties produced and designated the Confidential Exhibits pursuant to the Parties' Protective Order, reflecting their bargained-for expectation of confidentiality." (Moving papers at 4:2-3.) However: "The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties." (CRC 2.551(a).)
9	Barrett vs. Southern California Edison 2025-01467144	Motion for Summary Judgment and/or Adjudication Defendant Southern California Edison Company's Objections to Plaintiff Brad Barrett's Separate Statement of Disputed Material Facts, filed on August 31, 2026 are OVERRULED in their entirety. Plaintiff Brad Barrett's Objections in his Opposition Separate Statement are not considered. Objections may not be included in the Separate Statement. They are not properly before the Court.